

HOUSE No. 3717

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to modernize and enhance the distribution of Chapter 90 funds.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/17/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>6/16/2025</i>

HOUSE No. 3717

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 3717) of Michael P. Kushmerek for legislation to further regulate the distribution of transportation funds. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3361 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modernize and enhance the distribution of Chapter 90 funds.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 4 of chapter 6C of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting after subsection (b) the following subsections:

3 (c) All expenditures for maintaining, repairing, improving, and constructing municipal
4 ways and bridges, and other eligible municipal projects, made by the department in accordance
5 with subsection (b), shall be allocated by the commissioner to each municipality based upon the
6 following factors-

7 (i) The cost of resurfacing two percent of all municipally owned, but not state numbered,
8 roads within said municipality;

9 (ii) The cost of resurfacing three and three-tenths percent of all municipally owned and
10 maintained state numbered routes within said municipality.

11 (d) The match factor of the Municipal Match Program set forth in Chapter 90 of the
12 General Laws, as appearing in the 2020 Official Edition, for the purpose of maintaining,
13 repairing, improving, and constructing municipal ways and bridges, and other eligible municipal
14 projects, shall be determined by using the measure of aggregate property values and aggregate
15 personal income within each municipality, with each measure to be given equal weight.

16 (e) The maximum allowable match by the Commonwealth shall be two hundred percent
17 of the allocation put forth by a municipality, not to exceed said sum of local apportionment. The
18 minimum allowable match shall be twelve and a half percent of the allocation set forth by a
19 municipality, not to exceed said sum of local apportionment.